

Children's Rights in the Digital Environment



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Introduction and Assumptions of the Research

While human rights are the foundation of the Council of Europe and are enshrined in the EU Charter of Fundamental Rights and European constitutions, and internationally in the Universal Declaration of Human Rights (1948), digital human rights are still being shaped. The start of a unitary vision was triggered by the adoption at Union level in 2022 of the “*Declaration on digital rights and principles for the digital decade*,” through which the European Union has made “a commitment to a secure and sustainable digital transformation that puts people at the centre, in line with the fundamental values and fundamental rights of the EU” (European Declaration on Digital Rights and Principles for the Digital Decade (2023/C 23/01)).

This Declaration came against the backdrop of the two national milestones, Spain and Portugal, but also under the impact of the fulminant evolution of technology and digitization, which

triggered the awareness of the need to rethink classical rights. Of course, the stakes oscillate between the need to expand classical rights or the implementation of new legal mechanisms to ensure the fulfillment of human rights in the digital world. The reality is that the humanity is facing numerous challenges in securing them online. For example, despite the fact that freedom of expression is the most appreciated right by the European population, it metamorphoses when it comes to online guarantee, as it poses multiple risks due to the “viralization” of fake news and hate speech.

Putting people at the heart of the digital transformation of societies and economies shapes the core of the European Union’s vision, highlighted on the one hand in the overall policy program of the digital decade and on the other hand in the European Declaration on Digital Rights and Principles. Member States, of course, have stepped up their efforts to raise awareness of the relevance of a digital transformation, but they have made rather slow progress in translating fundamental rights into the digital sphere through concrete and tangible policies.

In any case, the human-centered digital vision is on the agenda of EU legislation and is booming. Let us not forget also recent regulations such as the Digital Services Act (DSA), the Digital Markets Act (DMA), ePrivacy, the General Data Protection Regulation, the Artificial Intelligence Regulation, or the European Digital Identity Regulation.

Furthermore, it can be said that the Declaration on digital rights and principles has triggered a “(r)evolution” of human rights and from an international perspective, becoming a source of inspiration for the OECD (Organisation for Economic Cooperation and Development) Declaration on a “reliable, sustainable and inclusive digital future,” launched in 2022, a declaration setting out a vision for a digital transformation centered on the human factor and reflecting the themes of the Declaration on European Digital Rights and Principles. (The OECD has issued a statement on a “trusted, sustainable and inclusive digital future.”) The Declaration also “fueled” the United Nations Global Digital Compact, analyzed at the Summit of the Future in September 2024 (Nedzelschi 2024).

Moreover, in this context of recognizing the importance of digitization and the need to ensure clear rights and principles in the field, the European Commission has undertaken the ambitious policy agenda of the digital decade 2030, in a proactive response to the challenges and opportunities that the digital age brings, through which areas such as digital education, personal data protection, cybersecurity, and digital inclusion are addressed. A special awareness is needed when talking about the right to privacy manifested in the virtual space, where the person's right to refuse the Internet or to disconnect is questioned, but also cybersecurity, which implies a close and harmonized cooperation at international level. Another problem that needs to be subjected to rigorous analysis is digital inequity, especially in the area of Internet access and training of children, with a large part of the world's population not benefiting from the Internet, which leads to serious social inequalities.

During the research, it will be explored the development of constantly changing regulations, especially digital rights and principles in the light of the special rights of the child. Based on the premise that European digital rights and principles are a set of principles designed to guide EU digital policy in line with existing fundamental rights and to promote a secure, inclusive, and rights-respecting digital environment in all EU Member States, the author focuses on possible gaps in the

protection of vulnerable groups, represented by children and young people. Initiatives to support children and young people online must provide adequate solutions to the most pressing risks. Moving forward on this “minefield,” governed by algorithms or artificial intelligence-based chatbots, one wonders whether legislators always have a complete picture of the potential risks posed by these systems. However, generative AI is still under development and implementation, and the regulatory attempt is perhaps carried out without a clear vision of the objectives to be achieved. Limited transparency, unclear accountability, and overreliance on private AI companies can weaken the international, Union, and national human rights framework. In essence, the challenges are the same for each legislator, namely the need to harmonize, to set up secure, transparent digital rights that facilitate the use of digital technologies in an open, secure, and safe environment, conducive to freedom of expression and the right to information. But how will these goals be achieved? Legal instruments of the type *hard law*, especially with regard to the matrix of children's rights in the digital environment are needed?

Of course, digitization transfers the applicability of classical fundamental rights and freedoms to the virtual space, but at the same time, it creates new opportunities for implementation and interpretation according to the risks and threats generated by the evolution of technology, which implies the search for appropriate legal solutions.

Methodology and Vision

Given these assumptions, the entry seeks to analyze the current regulations on digital rights and principles, with a special focus on the rights of children in the digital environment, capturing the reaction of international and European bodies in adapting to the digital age and the reconstruction of the “architecture” of traditional fundamental human rights, which is also reflected on the rights of the child. During the research, proposals will be highlighted to improve the current legislative framework, in order to take further steps towards concrete solutions as technology evolves. The

research relies on adapting the domain and content of offline rights to an online environment, by extending the current regulatory framework and transitioning towards the conceptualization of new rights, identifiable only in the digital sphere. The consolidation of a digital age revolving around the hard core of children's rights is needed.

At the same time, the entry proposes an inter- and transdisciplinary dialogue, ensuring an ethical and humanistic reflection due to the complexity and the need to analyze the rights of the child under the "magnifying glass" of psychological, sociological, educational, legal, or ethical dimensions, such a sensitive exploration evoking the need for depth in analysis and interpretation, through methods that involve the transition to other social sciences. It is, after all, a "new way of speaking of law, starting from law" (Duțu 2024).

The main research methods used in this study are the logical method, the exegetical method, and the analytic-synthetic method specific to formal logic, allowing to achieve the main objectives such as the analysis and evaluation of current European and intranational regulations, exploring the impact on human rights, rights with relevance in the matrix of children's rights, identifying opportunities for new legislative coordinates in the matter, but also identifying strategies, arguments, and proposals for directions and legislative harmonization to improve coherence and effectiveness for our digital future, a future in which the world aspires to reconfigure legislation in the light of technological innovations. It becomes extremely important to develop a favorable and stable legislative framework, the interest in the protection of rights and freedoms being decisive for any sphere of regulation of society. More important, however, is the awareness of the existence of these legal phenomena, requiring a quick and adapted correlation between respect for human rights and digital transformation.

"Navigating" Between Old Rights and New Rights: Shaping Digital Rights

The premise of this research is to explore the key normative and institutional responses to the

challenges posed by the digital age, but especially the extent to which they interact with the existing framework of human and child rights, this moving landscape creating generous opportunities to reinterpret and expand traditional rights or even to regulate new rights such as digital rights.

Moreover, in an ideal picture of human values protected by regional and international regulations, the digital revolution certainly invites a process of normative transformation and the reconceptualization of children's rights by extending offline rights to online activities and interactions, which would require the development of new justifications and theoretical foundations. For example, theories that outline the *right to confidentiality*, the *right to intimate privacy*, or the *right to privacy* are resized in the context of the evolution of artificial intelligence by new concerns of protection against manipulation of our desires, thoughts, and opinions, aspects that may generate the need for regulation of new rights in the digital sphere, the old rights not being sufficient for proper protection. This is due to the sometimes-uncertain adaptation or transposition of the domain and content of offline rights to the online environment. Thus, there are certain aspects of so-called digital rights that call for a reconsideration of some key features of fundamental rights.

Moreover, the wide gap between offline human rights and the needs and interests of online users can even become worrisome, suggesting that adapting an existing right is no longer feasible or may lead to inadequate results. That is why it is spoken about new generations of rights that are gradually taking shape in the sphere of human rights and implicitly the children's rights, such as the right not to be subjected to algorithmic decisions or the right to be forgotten (Shany 2023).

In this context of navigating between traditional, "old" and modern, new norms, outlined under the effect of digitization and legal problems generated by the development of AI, it is faced multiple legal dilemmas that "boil" both at international and regional level, revealing the shortcomings of the existing legal framework. For this reason, legislators are "ordered" to provide effective and adequate answers, while the judge and the doctrinaire are still in the "mixer" of abundant and

complex information, difficult to penetrate and “coagulate” in the present legal labyrinth.

In the literature, it is mentioned the idea of outlining three generations of digital rights (Dror-Shpoliansky and Shany 2023), meaning that the first generation implies a radical reinterpretation of existing human rights to enable them to meet the new conditions of the digital age, the second generation implies the development of new digital human rights, corresponding to the new needs and interests of online users, and the third generation implies the recognition of new right holders and new obligation holders.

The first generation of digital rights involves a dynamic reinterpretation of the relevant elements that configure offline rights, this extension demonstrating the possibility that new rights are the continuation of offline rights. For example, freedom of expression online is an example of first-generation digital law, its scope being extended by international bodies to cover new developments in society, arguing that this digital right now encompasses the derivative right on access to the Internet. Equally, the application of limitations on freedom of expression has been supported more forcefully than before, given the unique way in which offensive content is disseminated online and the distorting impact on public discourse caused by online disinformation. Moreover, the right of access to information and combating online disinformation are crucial issues in the digital information age, all the more so since combating online disinformation is a real challenge given the potential to undermine confidence in the information available in the digital environment. Another example of a traditional right whose content has undergone changes in order to adapt to the digital environment is the right to privacy. Thus, the center of gravity of legal practices aimed at upholding the right to privacy has shifted from protecting individuals from intrusion into their intimate, private spaces to protecting their personal data.

As regards the second generation of rights, it differs from the first in that it involves the introduction of new rights, digital rights in their own right, such as an independent right of access to the Internet, the right to a protected, secure digital

environment, or the right to informational self-determination, the existence of which does not imply the invocation of existing offline rights by reinterpreting and adapting to the digital sphere.

According to the doctrine, the third generation of digital rights implies, unlike the first two generations, a departure from the fundamental characteristics of the current system of protection and the traditional state-centered configuration, which revolve only around the rights of individuals and concomitant obligations for states. The content of third generation rights may thus focus on issues related to relationships between online users, online platforms, or service providers, such as digital identity and net neutrality (Shany 2023; the preamble to the Declaration on Digital Rights and Principles).

European Union Strategy on the Rights of the Child

Of course, children's rights are human rights adapted to children, since they take into account their fragility, their peculiarities, and their age-appropriate needs. The child is no longer regarded as an “extension of their parents” but as a distinct person, the vision of them evolving from the Aristotelian conception according to which “the child is an unfinished being” to the recognition of them as a being with constantly evolving capacities and with the prerogative to actively participate in the legal and social life, benefiting from all the rights inherent in any human being (Drăghici 2013).

Consequently, digital rights enshrined in *European Declaration on Digital Rights and Principles for the Digital Decade*, it is also reflected in the “mirror” of children's rights, with certain peculiarities due to their vulnerability, because “when children's rights are at stake, we must not be silent witnesses” (Carol Bellamy).

It must be pointed out that the Union strategy in promoting the rights of the child in the digital environment began to take shape as early as 2021, prior to the completion of the *European Declaration on Digital Rights and Principles for the Digital Decade*. At that time, it was reaffirmed the

need to develop a legal framework that takes into account the rights of children and is constantly updated, starting from the premise that every child in Europe and the world must enjoy the same rights and live without knowing discrimination, intimidation, and violence. Thus, the last years have been marked by a real normative effervescence in the area of promoting children's rights at Union level, especially in the virtual area, the European legislator "building the foundation" of children's rights in the online environment and "unveiling" the trends in their agenda regarding their approach in the digital age. The promotion of children's rights is even more necessary in this era marked by the conglomerate of the effects of the pandemic, poverty and inequalities, discrimination, armed conflicts, climate change, but especially of the adverse effects that the virtual world can have.

Of course, the actions defined by the European Union strategy are guided by the EU Charter of Fundamental Rights and the United Nations Convention on the Rights of the Child (CDC), but also by the Council of Europe standards on the rights of the child. One of the major themes on the EU agenda is how children exercise their recognized rights when browsing online. Moreover, the Commission confirms the importance of the opportunities that the digital environment and new technologies offer children, including the development of creativity, learning, culturalization, interaction, etc. At the same time, the humanity must be aware that an increased presence in the online environment can entail exposure to harmful or illegal content, sexual abuse, manipulation, online harassment, bullying, etc., given that almost all aspects of life have moved into the digital, virtual sphere.

In light of these beliefs, EU strategies "swing" between heightened concerns for children's physical and mental health, the use of artificial intelligence (AI) potentially affecting privacy, safety, and security, and tackling digital inequalities as a result of lack of Internet access.

Among the objectives set by the European Commission to combat the risks of children online are: the possibility for information and communication technology (ICT) companies to

voluntarily report child sexual abuse to the authorities; a horizontal legal framework for AI that will identify systems whose use poses a high risk to fundamental rights, including children's rights; support for the protection of personal data and privacy through the initiatives "Youth Pledge for a Better Internet" and "Youth Call for Action"; EU platforms for child participation; use of child-friendly language; conduct child-specific consultations for relevant future initiatives; legislative initiatives in areas such as combating violence against children and improving the functioning of child protection systems; awareness-raising campaigns and training activities through the platform "A better internet for children" to raise awareness of cyberbullying and strengthen capacities to recognize fake news and disinformation; promote healthy and responsible behavior online; promote the prevention of Internet harassment through the forthcoming initiative "Pathways to school success"; finance initiatives to support the acquisition of skills through the Erasmus+ program; and strengthening cross-border cooperation (Bara-Busila 2024).

For example, to facilitate awareness through the use of language adapted to children, at regional level (COE), it is found in a simplified version, *Council of Europe Guidelines to respect, protect and fulfil the rights of the child in the digital environment*, in which rights and principles such as: *access to the digital environment for all children*, in the sense that it must be affordable and, if possible, free of charge in public spaces; *right to information*, in the sense that governments must ensure easy access to good information for children, children in turn must respect others in the online environment, bullying or violence is discouraged, the business environment must provide information about the terms of use that children can identify and understand; *the right to take part in decisions*, *the right of children to create and join groups online*, *the right to privacy and the protection of personal information*, in the sense that children's personal information should be used only with their permission or with the permission of their parents, children knowing how they can erase or correct mistakes but also how personal information is used. Last

but not least, the right *to be protected from injury*, by checking age limits, knowing and understanding bullying terms, managing harmful content, as well as risks from strangers who may be dangerous, the child being able to easily report harmful content or behavior. Also, at the regional level (COE), there exists the *Parental guidance for the online protection of children against sexual exploitation and sexual abuse* (Milovidov 2024).

Among the first legal instruments to take into account the rights of the child in the digital environment were: the revised Audiovisual Media Services Directive, which strengthened the protection of children against harmful and inappropriate content; the Digital Education Action Plan 2021–2027, which presented the vision of the Commission for quality and accessible digital education, but also the adaptation of training systems to the digital age; as well as the Declaration on youth participation in AI governance adopted by the Council of Europe, which explores the issues, challenges, and roles that stakeholders can play to ensure and enable youth participation in AI governance processes at all levels.

The focus was on involving children in decision-making by giving them the right to express themselves about what they experience online, their needs and concerns, with the EU strategy putting children at the heart of all EU policies and affirming the need for regulation regardless of sector. Moreover, the best interest of the child is an extremely complex notion, being the principle that governs all actions and policies of the EU, given that it “houses” 80 million children. For this reason, there is an accelerated trend of placing children at the center of protection systems, which is why recently, more specifically on 23 April 2024, the European Commission also adopted the *Recommendations on developing and strengthening integrated child protection systems in the best interests of the child*. With this Recommendation, the EU aims to bring together all its actions to protect children from violence, supporting Member States in developing and strengthening their child protection systems in their best interests, among the objectives being to improve children’s digital literacy, protect

children’s integrity and mental health, and prevent and combat (cyber)bullying. The Recommendation shall be accompanied by a communication on “*Putting Children’s Interests First: A Communication accompanying the Commission Recommendation on Integrated Child Protection Systems*,” and it echoes the views of more than 1,000 children, collected through the new EU child participation platform, in the view that no policy on children should be designed without their voice.

EU comprehensive strategy on the rights of the child and European guarantee for children developed with children and for children are some of the major policy initiatives proposed by the European Commission to better protect all children, help them fulfill their rights, and put them right at the heart of EU policy-making, both of which involve the voice of 10,000 children (commission.europa.eu). According to this strategy package, children should have access to the information provided in a friendly way so that they can clearly understand what their rights are and, in this case, what the European Union intends to do for them. Thus, the child-friendly versions were codesigned by children and present the information in a “digestible” way for their readers, using appropriate language, but also images and examples in this regard. Moreover, the child-friendly version is also accessible to visually impaired readers and can be accessed using assistive devices and technology (EU Strategy on the Rights of the Child 2021).

Keeping the same note of promoting children’s rights in the digital dimension, the Commission has expanded the strategy by adopting the working tool—*Better Internet for Kids-BIK+*—with the aim of improving age-appropriate digital services and ensuring that every child is protected and respected online by providing accessible and age-appropriate online content and services in the best interests of children.

The BIK+ strategy was based on three main pillars: *secure digital experiences*, which also calls into question the analysis of the future European digital identity wallet as regards age verification and how it could contribute to the rapid reporting of illegal and harmful content,

but also the establishment of the harmonized single number to assist victims of cyberbullying; *digital empowerment*, which involves children acquiring the skills and competences necessary to make informed choices and to express themselves safely and responsibly online; and *active participation and respect for children*, which gives them the opportunity to express themselves in the digital environment, accumulating innovative and creative digital experiences (New EU strategy to protect and empower children online 2022). This strategy builds on the European strategy for a better Internet for children, adopted in 2012, which has succeeded in influencing national policies across the EU and has been recognized internationally, an example being even *Safer Internet Day*, celebrated every year around the world.

In addition to the EU strategy for the protection and empowerment of children in the online environment, the new *Digital Services Act* (DSA), developed in the section above, is the first tool in the world to address issues such as cyberbullying, illegal content, and simplification of general terms of use. Thus, the DSA rules apply to all online platforms and very large online search engines. The Commission also seeks to better protect children in their school environment by helping teachers become “DSA school tutors.” They will provide training and information materials to help students with online concerns. In addition, the Commission has also published a brochure available in all EU official languages, explaining in simple words how the Digital Services Act will support a fairer and safer online world for minors (A safer online world for children and young people on the occasion of the Safer Internet Day 2024). In Romania, through the entry into force of Law no. 50/2024 for the implementation of the Regulation on Digital Services, the National Authority for Management and Regulation in Communications (“ANCOM”) was designated as the Coordinator of Digital Services at national level, responsible for monitoring intermediary service providers and implementing RSD, among the legislative obligations being the

protection of minors, in the sense that online platform providers must adopt measures to ensure a high level of privacy, safety, and security of minors in their service.

To close the circle of instruments that are part of the EU strategy on promoting children's rights in the digital environment, the author invokes *European Declaration on Digital Rights and Principles for the Digital Decade*, around which, moreover, the present “picture” of the research was outlined.

In addition to the fact that all the rights and principles invoked by the European Declaration on digital rights and principles are also assimilated to children, it also devotes a special section to children in Chapter V called “Safety, security and empowerment,” referred to as “*Protection and empowerment of children and young people in the digital environment*.” Thus, with regard to the rights of the child, the Declaration reinforces and outlines the following rights and principles:

Children and young people should be empowered to make safe and informed choices and express their creativity in the digital environment.

Age-appropriate materials and services should improve experiences, well-being and participation of children and young people in the digital environment.

Specific attention should be paid to the right of children and young people to be protected from all crimes, committed via or facilitated through digital technologies.

We commit:

- (a) providing opportunities to all children and young people to acquire the necessary skills and competences, including media literacy and critical thinking, in order to navigate and engage in the digital environment actively, safely and to make informed choices;
- (b) promoting positive experiences for children and young people in an age-appropriate and safe digital environment;
- (c) protecting all children and young people against harmful and illegal content, exploitation, manipulation and abuse online, and preventing the digital space from being used to commit or facilitate crime;
- (d) protecting all children and young people against illegal tracking, profiling and targeting, in particular for commercial purpose;

- (e) involving children and young people in the development of digital policies that concern them.

Statistics and Challenges in Shaping Children's Digital Rights

Despite progress, respect for children's rights remains a significant challenge both inside and outside the EU, and statistics underline the urgency of the mission of EU and international bodies in this direction. For example, according to statistics, it is estimated that around 20% of children in Europe experience some form of sexual abuse, that suicide is the second leading cause of death among children aged 15–19, and that no less than 29% of children aged 15 reported being frequently victims of bullying (Suica 2024). According to the World Health Organization, half of all children in the world experience some form of violence each year. Also worrying is the recent UNICEF report drawing attention to the challenges facing children living in European Union countries, including increasing poverty, deteriorating mental health, online sexual abuse, and exposure to pollution, Bertrand Bainevel, UNICEF's representative to the EU institutions, said that "it is essential that the EU builds on its recent achievements in promoting child welfare, including the adoption of the EU strategy on the rights of the child in 2022 and the European guarantee for children," with an overwhelming 71% of children's concerns being harassment and bullying.

In fact, in the annual report on the evolution of the digital decade of September 2023 (Commission Staff Working Document—Digital Decade report 2023), in which it is found progress towards the goals of the Digital Decade, the lack of digital skills is cited as one of the main barriers preventing vulnerable groups from accessing digital communications, meaning that according to statistics from 2022, 7.6% of people in the EU at risk of poverty could not afford an Internet connection, with Romania, Bulgaria, and Hungary registering values of over 25%. In order to create a "Union of equality," ensuring the accessibility of online

services is essential, with the Declaration stating that everyone should have the right to connectivity and an accessible and high-speed digital tool everywhere in the EU, as a key precondition for promoting equal opportunities in an increasingly digitized world. According to the 2023 Special Eurobarometer, only a small majority of Europeans (53%) believe that everyone has access to a high-speed Internet connection and more than a third (35%) stress the need for a better connection. High-speed Internet connections were still rare in European schools in 2019, especially in rural and remote areas, and in terms of school equipment, the share of pupils attending schools where more than 90% of digital equipment was operational ranged from 61% in primary school to a level of 73% in higher education (European Commission 2019).

The protection of children and young people online is a topic that Europeans are most concerned about, as the Special Eurobarometer survey shows, with only 45% of Europeans believing that the country provides them with a safe digital environment and content for children and young people. In an overall view, more than 43% are concerned about the safety of children online, especially in Sweden (63%) and Greece (60%).

The Declaration states that young people and children should be able to make informed choices and express their creativity in the digital environment and have access to age-appropriate materials and services, while being protected from crimes committed or facilitated through digital technologies. In this regard, the commitments aim to provide an appropriate education for navigating a digital environment, protected from harmful and illegal content, free from online exploitation, manipulation, and abuse, while children are involved in digital policies that concern them.

Irene Khan, Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression, recalled that "if, in the world of platforms, individuals are mere users, in the real world, they are rights holders," meaning that digital literacy empowers rights holders, strengthens their resistance to the manipulation of information, and, when combined with

adequate access to the Internet, enables people to assert their right to freedom of expression. All of this is of paramount importance to women, young people, children, and marginalized groups. Such arguments come in favor of the need to outline and interpret digital rights as a whole, as rights that break somewhat from the scope of traditional rights.

Children's use of digital technologies has changed dramatically, with them benefiting from modern devices for accessing and interacting, most often without parental supervision. Children are currently very active and independent digital consumers, often using digital products and services designed for adults. They are exposed to or targeted by a range of online marketing techniques, with the consequences being exposure to harmful and illegal content. Digital services, from social networks to interactive games, can expose children to risks such as inappropriate content, assault, or child sexual abuse, with 1 in 3 children surveyed in 19 European countries reporting being exposed to images of sexual activity and 1 in 3 girls surveyed in the EU reporting experiencing disturbing content online once a month. It is auspicious that the Digital Services Act (DSA) of 2022 includes specific provisions on the protection of minors, including with regard to targeted advertising, with platform providers having to provide minors with a high level of privacy, security, and safety, mitigating the risks and adverse effects on mental health.

In addition, as a key action under the BIK+ strategy, the Commission will facilitate a comprehensive EU Code of conduct on age-appropriate design (the "BIK+ code") (Special group for the EU Code of conduct on age-appropriate design), which will build on the regulatory framework set out in the Digital Services Act (DSA) and contribute to its implementation, in line with the EU Audiovisual Media Services Directive (AVMSD) and the General Data Protection Regulation 2016/679 (GDPR). Thus, the Code seeks to strengthen industry involvement in protecting children when using digital products, with the ultimate aim of ensuring their privacy, safety, and security online, complementing specific GDPR requirements for the processing of children's data such as seeking

parental consent to process data of children under a certain age through information society services (e.g., social networks, video streaming platforms, or games) or providing privacy notices in a way that is appropriate for children. Moreover, the European Data Protection Board (EDPB) has worked on guidelines for the processing of children's data, being one of the key priorities in 2023–2024. Children deliberately use their personal data or may expose themselves as a result of the dissemination of geolocation services, thus becoming possible subjects of service offers that may affect their education or affect their identity in training or reputation. At the same time, they can become victims for various types of crimes (child pornography) or other situations harmful to their balanced growth, such as cyberbullying or sexual harassment (Barbur 2023).

Regulation (EU) 2016/679 created the context of regulating the special protection of children's rights, avoiding dangers to their health and mental integrity. In light of the provisions of Section 38 of the Preamble, "*Children merit specific protection with regard to their personal data, as they may be less aware of the risks, consequences and safeguards concerned and their rights in relation to the processing of personal data. Such specific protection should, in particular, apply to the use of personal data of children for the purposes of marketing or creating personality or user profiles and the collection of personal data with regard to children when using services offered directly to a child. The consent of the holder of parental responsibility should not be necessary in the context of preventive or counselling services offered directly to a child.*" (For development regarding the age from which the child who is directly offered an information society service can express a valid consent, see Duminić and Drăghici 2018, pp. 118–120).

Another important mention in the Regulation concerning children refers to respect for the principle of transparency, according to which any information addressed to the public or to the person concerned must be concise, easily accessible and easy to understand, and use plain and clear language, "*since children require specific protection, any information and communication, if the*

processing concerns a child, should be expressed in simple and clear language so that the child can easily understand it."

However, with regard to the personal data of children under recital 38 GDPR, it must be taken into account that the responsibility for understanding the information provided cannot be placed solely on their shoulders, nor on those of their parents. The efforts of online service providers and data protection authorities should be strengthened to ensure the correct and transparent processing of children's personal information. Incidentally, research has shown that both children and adults use online services and often accept their terms and conditions without actually reading them. For example, an analysis of the privacy policies of Instagram, Snapchat, and TikTok shows that there is room for improvement to move from long, text-based policies to more attractive formats and easy-to-understand language tailored to different user ages (Milkaitė and Lievens 2019).

Although the European legislator leaned on the processing of children's personal data in the Preamble of the Regulation, it is obvious that this legal instrument of the type *hard law* was thought out rather for adult people. But the fact that the Preamble of the Regulation expressly refers to the rights of children and the need for their special protection represents a leap in the regulatory vision, openly recognizing the position of children and their needs in the online environment through a special reference. *De lege ferenda*, a legal instrument would be required in the future *hard law* dedicated exclusively to children with regard to the processing of personal data or even a complex regulation aimed at and regulating the new digital rights of children, legal instruments such as *soft law* such as the Declaration on digital rights and principles, not having direct applicability and leaving available to Member States how to model the rule and implement it at national level. In other words, a legal regime that treats children specifically and separately may prove more effective, accountable, and transparent than one that addresses the needs of adults with priority and merely captures certain aspects of children's rights.

Another key aspect of the Declaration concerning children is *education, training, and development of digital skills*, the right to education and access to digital resources are essential aspects of digital rights. Thus, according to the Declaration, all have the right to education, training, and lifelong learning and should be able to acquire all basic and advanced digital skills, the general objective of the digital decade being "to bridge the digital divide by promoting continuous opportunities for all individuals, through the development of basic and advanced digital skills and competences."

In recent years, digital technologies have contributed significantly to increasing the quality of education and training in Europe and made them more accessible and inclusive, helping us respond to the COVID-19 pandemic or the war in Ukraine with solutions such as distance learning. However, to date, Member States appear to be experiencing difficulties in ensuring the development of digital skills, with Union efforts and initiatives not leading to a systemic digital transformation in education. The use of digital tools for innovative educational solutions also requires adequate teacher training, but less than half of EU teachers (49.1%) reported that ICT was included in their formal education program, with only 39% of teachers feeling well prepared to use digital technologies for teaching (OECD (2019), TALIS 2018 Results (Volume I)). Also, while the EU supports Member States in digitizing schools with significant amounts paid for through various programs, a report by the European Court of Auditors in April 2023 found that the lack of strategic use of this EU funding in Member States undermines its full impact. It has been pointed out on numerous occasions that digital, media, and information education is a collective responsibility involving states, digital service providers, and civil society in particular. Digital service providers must take responsibility for combating disinformation, while respecting human rights and guiding principles, by reasonably moderating content and taking the necessary precautions.

National Perspective: “Romania 2024 Digital Decade Country Report”

If the scope of analysis at national level is narrowed, it can be found that, according to the National Action Plan on the Digital Decade, Romania has undertaken policies, measures, and actions aimed at contributing to the achievement of the EU's general objectives regarding the digital decade, invoking in this regard the *National Strategy for the Protection and Promotion of Children's Rights 2022–2027*, as well as the *Operational Plan* for the implementation of the National Strategy for the Protection and Promotion of Children's Rights “*Protected children, safe Romania*.” The measures are aimed at: including elements related to digital security of children in the school curriculum at each level of education, organizing information campaigns to raise awareness of the benefits and risks of Internet use by children, developing a guide on the safe use of the Internet by children adapted to different age levels, implementing safety measures for children using the digital environment, as well as developing an easy-to-use counselling platform for children.

Recently, the European Commission also published the second *Report on the evolution of the digital decade*, which captures an integrative picture of the progress made by each country in achieving the digital goals and targets set for 2030 through the digital decade policy program (DDPP), with the report also accompanied by an analysis of the national strategic roadmaps presented by Member States in the digital transformation of the EU. Regarding the *Romania 2024 Digital Decade Country Report*, published on 2 July 2024 by the European Commission, it concludes that Romania has made remarkable progress in digitizing public services and SMEs. However, the Commission draws attention to the fact that Romania is in last place in terms of several indicators of digitalization, being one of the countries that are holding back the EU's “march” towards the 2030 targets. However, in the current scenario, the collective efforts of the Member States are not capable of achieving the level of ambition proposed at Union level.

Moreover, the recent report points out that in 2023, the uptake of AI, cloud and big data by European businesses was also well below the digital decade target.

At the same time, the Commission indicates that measures with an impact on digital rights are needed, and efforts are needed to improve and retrain the workforce by improving the quality and relevance of courses and teaching in the field of digital skills. Placing citizens at the heart of the digital transformation of societies and economies is at the core of the digital decade, and it is also the first principle developed by the Declaration on digital rights and principles. In fact, according to the Special Eurobarometer “Digital decade 2024,” 45% of Romanian respondents believe that the EU protects their digital rights, and 48% trust in digital privacy, concerns about the online safety of children (48%) and control over personal data (41%) being on the rise, which strengthens the idea of shaping and promoting digital rights at national level (Loy 2024).

However, Romania demonstrates a positive dynamic and ambition in terms of contributing to the digital decade, a vision reflected in the roadmap through which it has undertaken a considerable effort to achieve the targeted objectives. In this respect, it was pointed out that in 2023, Romania relied on significant developments in the field of cybersecurity, initiated both in the private environment and by public actors, but also on efforts to increase awareness and develop relevant competences in the digital field. Thus, although over 72% of the population still does not have basic digital skills, Romania is making efforts to raise their level, the emphasis being currently on integrating digital skills at all levels (formal education, including through curricular reforms, teacher training, infrastructure and learning, and resources).

In the light of an integrative perspective, of interweaving national norms into the universal and regional picture of human rights, it must be borne in mind that the rights of children were recognized after the First World War, by the adoption of the Geneva Declaration of 1924, and were emphasized again in 1959, by the UN Declaration

of the rights of children of 1959. On 20 November 1989, with the adoption by the UN Convention on the rights of children, these rights were stated and accepted around the world. This international document incorporates, more than any other, the entire spectrum of human rights—civil, political, economic, social, and cultural and provides for a complete development of the child's potential in an atmosphere of freedom, dignity, and justice (Purdă and Diaconu 2016, pp. 177–183).

The Romanian Parliament ratified the Convention on 27 September 1990, and 14 years after assuming the obligations provided by the Convention, adopted Law 272/2004 on the protection and promotion of the rights of the child, considered a true Code of the child and the family, which assimilated the natural right of the child not to be subjected to physical and emotional suffering through negligence or through actions taken in the process of their care, education, and development (Save the children Organization 2021). Law no. 272/2004 affirms the obligation of public authorities, authorized private bodies, as well as natural persons and legal persons responsible for child protection to respect, promote, and guarantee “the rights of the child established by the Constitution and law, in accordance with the provisions of the UN Convention on the rights of the child and other relevant international acts, to which Romania is a party,” consistent with the “principle of best interests of the child.” At the same time, the European Court of Human Rights (ECHR) has developed over time a substantial set of jurisprudence on the protection of children.

Centering the Digital Revolution on Education, Training, and Digital Skills: International Perspective

From the perspective of international law, the author refers to the Universal Declaration of Human Rights, which provides in Art. 1 that: “All human beings are born free and equal in dignity and rights,” as well as the *Convention on the rights of the child* adopted by the United Nations General Assembly on 20 November 1989, ratified by Romania by Law no. 18/1990.

At the same time, the ideal of transforming the world society in the spirit of progress, well-being, and respect for human rights is the foundation of the resolution adopted by the UN General Assembly on the 2030 Agenda for Sustainable Development.

Of course, digitization and optimization of digital technologies occupy an important place at the UN level, the year 2018 being the year when was created the *High-Level Panel on Digital Cooperation* at the initiative of the UN Secretary-General. Thus, in June 2019, it published the report “*The age of digital interdependence*,” which includes a series of recommendations to improve digital cooperation (Marcusohn 2023).

In shaping the international “picture” in terms of awareness and promotion of children's digital rights, an essential role is played by the “*General comment no. 25 on the rights of children in the digital environment*” (General Comment no. 25 (2021) on children's rights in relation to the digital environment), adopted at the UN level in March 2021. According to it, children should be left free in the digital world, only to be protected from violence, exploitation, abuse, and misinformation. At the same time, it is clearly stated that the rights of the child present in the Convention on the rights of the child must also be ensured online.

Among the objectives of the Commentary are ensuring access to the digital environment, digital literacy, protecting privacy, and online safety. Moreover, one of the priority objectives of the Commentary, namely digital literacy, which could be considered an extension of the right to education, corresponds to objective 4 of the UN 2030 Agenda, which stipulates that states must be concerned with ensuring inclusive and equitable quality education and promoting lifelong learning opportunities for all, nondiscriminatory access to educational resources being one of the most eloquent forms of expression of human rights education.

General Comment no. 25 on the rights of children in the digital environment carried out at UN level proposes four principles: *nondiscrimination*, in the sense of equal rights for everyone by ensuring access to the digital environment without any

distinction; *ensuring the best interests of the child*, meaning that children have the right to seek, receive, transmit information, be treated carefully, and be protected online; *ensuring the right to life and development*, i.e., reducing the risks related to violent content, contact and behavior, cyberbullying, harassment, gambling, and exploitation and abuse, including sexual, incitement to suicide, recruitment by criminals, gangs, or terrorists; and the principle of *respect for children's opinions*, meaning that they have the right to participate in the life of the community and to be consulted in the development of policies and laws that impact on their rights in the digital environment.

Indeed, digital technologies can help shape and achieve the full spectrum of civil, political, cultural, economic, and social rights, such as children's access to high-quality inclusive education, providing reliable resources for formal and non-formal learning, self-learning, distance learning, especially for vulnerable or disadvantaged children in remote communities, as well as in situations of emergency or humanitarian crisis. In fact, during the consultations for the formulation of the recommendations of the General Comment no. 25, it was the children themselves who declared that the digital environment opened new horizons, an expanded vision, and considerable opportunities for their voice to be heard in various aspects that concern them, thus shaping the activism of children and young people, as human rights promoters (Pelivan 2021).

Although the digital environment offers many opportunities for the development of children, it also presents multiple challenges and risks, in particular the expansion of the phenomenon of violence against children, meaning that sexual abusers could use digital technologies to request information for sexual purposes and to commit child abuse. That is why the General Comment recommends that the signatory States outline robust legislative and administrative measures to protect children from harmful, hateful, and deceptive content, from all forms of violence in the digital environment, including trafficking in human beings, gender-based violence, cyberbullying, cyberattacks, economic, sexual, and other exploitation, as well as information warfare.

Moreover, even the proposal for an EU Regulation on artificial intelligence refers to General Comment no. 25 in para. (48) from the Preamble. Thus, according to the Union law on artificial intelligence, "*The extent of the adverse impact caused by the AI system on the fundamental rights protected by the Charter is of particular relevance when classifying an AI system as high risk. Those rights include the right to human dignity, respect for private and family life, protection of personal data, freedom of expression and information, freedom of assembly and of association, the right to non-discrimination, the right to education, consumer protection, workers' rights, the rights of persons with disabilities, gender equality, intellectual property rights, the right to an effective remedy and to a fair trial, the right of defence and the presumption of innocence, and the right to good administration. In addition to those rights, it is important to highlight the fact that children have specific rights as enshrined in Article 24 of the Charter and in the United Nations Convention on the Rights of the Child, further developed in the UNCRC General Comment No 25 as regards the digital environment, both of which require consideration of the children's vulnerabilities and provision of such protection and care as necessary for their well-being. The fundamental right to a high level of environmental protection enshrined in the Charter and implemented in Union policies should also be considered when assessing the severity of the harm that an AI system can cause, including in relation to the health and safety of persons.*" It is appropriate to emphasize, once again, the legislator's lack of emphasis on the rights of the child in relation to the risks defined in the EU Regulation on artificial intelligence. Thus, a minus would be even the lack of allocating a special chapter to the rights of the child in the age of artificial intelligence, referring to them only in the Preamble of the legislative act, with reference to other international instruments.

Also in the direction of digital reform, the United Nations General Assembly unanimously adopted on 21 March 2024 the first *Global resolution on artificial intelligence* (UN adopts first global resolution on artificial intelligence 2024), which also focuses on the protection of human

rights, personal data, and the monitoring of artificial intelligence in order to detect inherent risks. In fact, as Volker Türk, the United Nations High Commissioner for Human Rights, says, “the human rights framework provides the foundation that is urgently needed to innovate and realise the AI potential ... It can also help prevent and mitigate a multitude of risks and prevent generative AI from becoming a vector of widespread human rights violations, abuses, discrimination and exclusion. If ethical considerations are important in this debate, human rights and their universal and binding framework are needed, in order to take a further step towards concrete solutions and avoid, at worst, criminal liability for human rights violations. OHCHR works directly with some of the leading companies that produce generative AI and our goal is to help them respect human rights as they develop their tools”.

From a perspective of multilateral cooperation, OECD Global Partnership for AI (GPAI) can be considered and also the EU's contribution to Global Digital Compact, defined as an inclusive global framework to overcome digital divisions and outlined at the Summit of the Future in September 2024. This Compact is expected to outline new principles, objectives, and actions to “promote an open, free, secure and human-centered digital future for all, one that is anchored in universal human rights and enables the achievement of the sustainable development goals.” *The Summit of the Future* represents another opportunity to strengthen digital rights, with States pledging to adopt a *Compact for the future* to strengthen collective agreements and present global solidarity for current and future generations. On the agenda of the discussion program was the idea of promoting the rights of young people with regard to decision-making and their involvement in all UN intergovernmental mechanisms and processes, as well as creating an appropriate environment at national level that allows them to fulfill their rights and potential through education, and a “Declaration on future generations” to be negotiated separately, inspiring Member States in a long-term forward-looking governance at international level (Summit Of The Future 2024: What Will It Deliver?).

As a matter of fact, the Human Rights Council has been intensively discussing since 2023 the importance of digital, media, and information literacy, education being essential for strengthening the resistance of society and countering disinformation, especially in the context of elections, pandemics, and crisis situations, interconnected in recent years. Such stakes were developed by the Deputy High Commissioner for Human Rights, Nada Al-Nashif, in the context of the opening of the discussion panel held by the Human Rights Council on “the importance of acquiring knowledge in the fields of digital technology, media and information,” on which occasion the right to freedom of opinion and the right to expression were promoted.

And at the level of the United Nations Educational, Scientific and Cultural Organization (UNESCO), a specialized agency of the UN, the target is to preserve freedom of expression and access to information on digital platforms, which have become true ecosystems of misinformation, ideological polarization, and incitement to violence, discrimination, and hatred, causing the undermining of human rights worldwide. Tawfik Jelassi, deputy director for communication and information at the United Nations Educational, Scientific and Cultural Organization (UNESCO), pointed out, for his part, that the main aspects of media, information, and digital skills education are generated by understanding the different functions of media platforms and digital technologies in order to be able to correctly assess the credibility and quality of information sources. People need to be able to form informed opinions, measure and evaluate the digital space, developing their own capabilities to use digital information and technologies for positive purposes, by understanding the implications of sharing information online, while preserving freedom of expression. In this regard, Irene Khan, Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression, stated that “if, in the world of platforms, individuals are mere users, in the real world, they are rights holders and digital literacy empowers rights holders, strengthens their resistance to the manipulation of information and, when combined with

adequate access to the internet, enables people to assert their right to freedom of expression". As a consequence, digital literacy will have to become a compulsory element of all curricula and adult learning programs, with digital, media, and information education being a collective responsibility involving States in particular, but also digital service providers and society in general, as it also shows *UN Guiding Principles on Business and Human Rights*.

As stated in the literature, *"artificial intelligence is part of a narrative of the imminence of the technologization of education, also bringing the promise of optimal customization, to make education more similar to Netflix and Amazon... but AI can be used in education as a tool, to improve and facilitate access to information, to aggregate data and to provide quick answers, but not as an educator...education is too complex and malleable...the type of education that can be offered and controlled by AI is a form of instruction to be avoided, a dehumanized, information-focused, simplified, streamlined and restricted process that can inform or disorientate, train and disable"* (Popenici 2023, p. 197).

That is why a careful "metamorphosis" of the right to education in the age of digitization is required, this being an impossible process to avoid, by rethinking education and readapting the right to education, which will certainly evolve into a right to digital education-digital literacy, a right in its own right, a fundamental right, also enshrined in the Constitutions of States. Of course, with the need for placement in a well-defined ethical framework, this is a highly sensitive process in approach and implementation. After all, education is the space where all must dare to start change and contemplate the power of humanity in adapting to the new digital age.

Indeed, the right to education enjoys multiple nuances and particularities when it comes to the digital sphere, being in the area of interest of international bodies and due to the fact that education is among the first sectors that tested digitalization through the need for rapid adaptation during the COVID-19 pandemic. Thus, the need

to ensure the continuity of the educational process materialized in that period by the transition to online education, at the cost of violating other rights of children, such as dignity, non-discrimination, or equal opportunities, in the case of children from disadvantaged areas where the Internet did not work. The right to education, although universal, has proved to be extremely vulnerable to challenges such as pandemic or war, but the transition to online education has demonstrated that digital literacy, access to technology, and Internet connection are *sine qua non conditions* to create the right to education of children. Even the right to the Internet becomes uninteresting in the absence of proper digital literacy.

Let us not forget about the spiritual component of education either. As Dalai Lama says, *"education is not limited to passing on knowledge and skills that enable limited goals to be achieved. It also consists in opening children's eyes to the rights and needs of others. This requires us to help them understand that their actions have a universal dimension and we must find a means to develop their innate empathy in such a way that they acquire a sense of responsibility for their neighbor"* (Riccard 2024, p. 559), being considered essential to introduce into education the teaching of fundamental values in the field of psychology, child development, brain plasticity, emotional balance, solidarity, cooperation, and interdependence between all beings. Integrating such issues could be key in shaping a child's digital right to education. In fact, a study conducted in the United Kingdom, in more than 1600 schools that emphasize the promotion of such rights, highlighted the development of pro-social behaviors and more positive attitude in addressing human diversity, children better understanding global participation in social justice.

Multilateral cooperation and pluralism of ideas remain essential pillars in the development and shaping of sound digital rights, regulation of the type *hard law* being a secure and transparent tool to uniformize digital transformation globally. Beyond 2024, what is next?

Conclusions: Key Legislative Review and Reform Changes in the Age of Digital Interdependence

Although in the last decade the world has enjoyed an effervescence of guidelines and principles that tend to shape digital rights, the efforts of regional and international bodies in this direction being numerous, it still face barriers of interpretation and, consequently, of completion in regulation. In an analytical realm, it will be found that digital rights are still a relatively confusing concept, being associated with other universally enshrined rights and freedoms, such as the right to education, freedom of expression, the right to information, or the right to privacy. Are these digital rights just an extension of traditional rights, in the sense of applying and adapting them to what it is called the digital or online environment? Is such an interpretation, promoted at one time including by the UN, sufficient in the sense that there is no need to “invent” new rights, but rather to focus on adapting existing ones to the digital world?

Considering that digital rights present, in addition to the specific features, the characteristics of human rights of universality, indivisibility, and interdependence, the most likely path would be the resizing of the “global legal architecture” regarding fundamental human rights, in a favorable context in which specialists have already paved the way for a different approach in this regard. In a society where the legislator is barely able to keep up with the evolution of technology and to face the new challenges of artificial intelligence, the acceptance of the need to change the normative framework becomes essential for the future of humanity, and the protection of the child should be at the center of interest of regional and international bodies.

Indeed, the European Union is becoming a source of inspiration in paving the way for the regulation of digital rights, with the adoption of the Declaration on digital rights and principles for the digital decade being an important step towards shaping these rights. Of course, a global regulatory framework would boost this (r)evolution of human rights in the spirit of the ongoing process

of digitization, such as, for example, the adoption of an international declaration on digital rights. In reality, real protection cannot be achieved by means of tools such as *soft law* or simple agreements of adherence to certain ethical principles.

The fact is that since its adoption in 1948 by the United Nations General Assembly, the Universal Declaration of Human Rights has been a moral beacon on the world, consolidating its vision and core of rights in more than 500 languages and generating a number of other international treaties and pacts that have shaped the normative framework of fundamental rights and freedoms addressing torture, disappearances, racial discrimination, and the rights of women, children, and persons with disabilities. Although the Universal Declaration of Human Rights has never been amended, it may now more than ever claim its right to be updated, reconfigured, and thus applied on a large scale, effective multilateral cooperation being the key factor in an ever-changing world. Under the same assumption, the same rigorous process should be followed by the Convention on the rights of the child.

If the scope of analysis would be narrowed at Union level, it could be considered adopting a Regulation on digital rights, which would be much more advantageous than an EU Declaration or Directive, as it would be directly applicable and would ensure rapid harmonization at regional level. Going forward, in the area of children's rights, a legal instrument such as *hard law*, i.e., a complex EU Regulation, in which the totality of the regulations on rights and principles applicable in the digital environment would be merged, in accordance with the specificity and vulnerability of the child. In other words, a legal regime that treats children specifically and separately may prove more effective, responsible, and transparent than one that addresses the needs of adults with priority and sequentially captures aspects dedicated to children, especially in the preamble of acts as it has been observed in this research.

The main reason for the introduction of new human rights and implicitly of children is that the current rights offer insufficient protection, requiring increased legal clarity, adapted to the new reality deeply imbued with the evolution of

artificial intelligence and the risks it entails. The right to access the Internet for children, the right to connectivity, the right to digital skills, or the right to a trusted digital environment adapted to children cannot be considered extensions or facets of the right to education, freedom of expression, or the right to privacy.

Moreover, an inadequate, confusing, and differently interpreted adaptation at the level of each jurisdiction, through what is called adaptation of traditional rights to the online environment, generates uncertainty and amounts to the lack and protection of human rights. However, a unified approach and a union or international political confirmation will lead to the regulation of such rights and at the level of the Constitution of the States, which ensures uniform and transparent protection. For example, Estonia, Greece, and France are countries that have constitutionally regulated the right to access the Internet since 2009–2010. Romania regulated Internet access in 2022 through Law no. 198 of 6 July 2022 amending and supplementing certain normative acts in the field of electronic communications and establishing measures to facilitate the development of electronic communications networks, following the direction set by Regulation (EU) 2015/2120 of the European Parliament and of the Council. Moreover, Internet access is included in the category of universal service, in the sense that “end-users should have the right to access and distribute information and content and to use and make available applications and services without discrimination through their internet access service.”

Of course, all these regulations contribute to the consolidation and acceptance of these new rights, called digital rights, and the effervescence of normative acts in recent years in the sphere of data protection and access to services by shaping a digital identity affirms and reinforces the direction in which the world is heading. Moreover, access to the Internet or to the development of digital skills should become fundamental rights of people, implicitly children, these being interrelated with ensuring access to information, expression, assembly, association, health, etc. Practically, even traditional rights will become incomplete if

the new digital rights are not ensured, an important role in their affirmation being played by ECHR jurisprudence, which can export different situations of interpretation of possible restrictions on traditional rights such as freedom of expression, the right to privacy, etc., in the context of the important role that the Internet plays in people's daily lives. However, a balance needs to be struck between Internet access, protection of privacy and personal data, in line with increased security and the fight against crime. Thus, citizens must have the right to freely decide how their data is used in order to avoid possible abuse, the right to be forgotten or to refuse to use the Internet in certain circumstances. A harmonization of regulations would reduce the regulatory burden on businesses and improve clarity for users, with appropriate protections being drawn up for different ages. Indeed, at EU level, data protection has emerged as a fundamental right, a right in its own right, but closely linked to the right to respect for privacy and intrinsic to human dignity, while the European Court of Human Rights has expressly recognized a right of informational self-determination, which is also interdependent with the right to privacy. Moreover, the role of the CJEU and the ECHR is assumed and obvious in terms of building harmonized regulations in the dynamics of the evolution of the digital revolution, so that technologies are at the service of humanity and not vice versa.

The European Declaration on Digital Rights and Principles is the EU's latest contribution to the complex process of constitutionalizing digital society and perhaps the most valuable step in the visibility of these rights. Member States' mission by 2030 remains to redefine digital policies and achieve objectives such as improving citizens' basic and advanced digital skills; ensuring the wide use of new technologies such as artificial intelligence, data, and cloud computing by EU businesses, including small businesses; promoting the EU infrastructure for connectivity, computing, and data; and ensuring online access to public services and administrations.

However, a restriction in regulation and interpretation may be due to the complex aspects arising from the application of human rights in the

context of democratic societies and cultural pluralism, being necessary first of all a compatibility of the new visions with cultural diversity. On the other hand, there is talk about the need for a holistic approach when it comes to digital rights, especially of the child. The psychological and spiritual component also plays an essential role in the study of human rights, emphasizing the need for a positive emotional climate so that respect for human rights is associated *de plano* with a moral objective.

Of course, efforts are visible to shape digital rights, especially at the level of the European Union, but progress is not as expected so far. Looking to the future, the following measures should focus on coordination and synchronization, avoiding the creation of a “mosaic” of rules that are extremely complex and branched, but inconsistent, crowded, and lacking in application and awareness. The flow of regulations in the field of digital services has experienced an explosion lately, which has led to the impossibility of ordinary citizens or SMEs to know their new rights and the new mechanisms in which they operate. It is important that the current regulations “bear fruit” and achieve their objectives, that they are harmonized and consistent, in order to be able to multiply further. Moreover, there is a need for transparency, avoiding opaque internal procedures for implementation or unclear deadlines, but also for the involvement of specialists and experts, through an interdisciplinary approach, answering questions such as how to operate and what are the main risks in the context of new technologies. Immersive technologies do allow us extraordinary experiences, but the safety of humanity remains essential. It is necessary to find the right balance between innovation, the regulatory burden, and the protection and security of people.

The harmonization of all regulations reflecting on rights in the digital environment is an extremely tortuous step, given the speed of the technological evolution process. For example, at EU level, harmonization between the IA Regulation and the GDPR Regulation would be required, with differences and discrepancies in some

concepts and definitions, such as biometric data or the list of banned IA systems.

In this regulatory landscape “crowded,” disseminated in far too many normative acts, requires a special look on the rights of the child through a unitary regulation, which would “coagulate” all the regulations concerning the rights and principles in the digital age, adapted to the vulnerability and specificity of the traditional rights of the child. As noted by the author, preferably a legal instrument of the type *hard law*, to ensure the “fan” of new rights, digital rights, with harmonized, stable, coherent, and unsupervised, unfragmented regulations, all the more so as artificial intelligence will put increasing pressure on the way of regulation and will fuel new challenges in respecting human rights. After all, it is about survival in the digital age, and the key element that must be materialized in the coming years, as the basic foundation of building and securing digital rights for future generations, remains education and digital skills, through the creation and recognition as a fundamental right of the child, everyone having the right to develop essential digital skills and to participate actively in the virtual world, through an effective access to digital content and information appropriate to age and opening new perspectives.

An extremely important role is played by individual States, through the development of national policies, especially in the field of children's rights. The objectives of digitization cannot be achieved without intense concern and an emphasis on the special rights of children. The early stages of development and training of the child must be considered, through the acquisition of the necessary capabilities and awareness of the rights that they have. At the same time, children need support, both from parents and teachers, who need to acquire in their turn the necessary capacities and competences to help and protect children in the digital environment and to master the mechanisms of judicial and nonjudicial remedy in the situation of violation of digital rights.

The vision must also be strengthened internationally; in today's interconnected world, digital content effortlessly transcends boundaries. That is why are needed standardized regulation more than

ever, a unified approach to digital rights management, and close collaboration between stakeholders, national governments, and international bodies by strengthening effective and flexible international treaties and agreements in managing digital rights and building a secure and innovative global digital market. It is a complex but necessary effort, as digital rights are fundamental for all. As Seneca said, “*It is not because things are difficult that we do not dare, it is because we do not dare that they are difficult.*”

It is appropriate to conclude by extracting the central idea of this research, namely the need for a much deeper exploration of the digital rights of the child, since they need an expanded vision, merged with the traditional rights of the child, bearing hybrid legal valences. There is a need for awareness. In this regard, the Declaration of the Rights of the Child states that: “*by reason of his physical and mental immaturity, needs special safeguards and care, including appropriate legal protection, before as well as after birth.*” In a digital age where every child's actions can be tracked and recorded, regulation becomes vital to children's “best interests” and to develop their potential.

Cross-References

- [Algorithms and Artificial Intelligence as a Threat to Fundamental Rights](#)
- [Consumers Rights and Vulnerabilities in the Digital Environment](#)
- [European Convention on Human Rights and National Constitutional Orders](#)
- [Privacy and Fundamental Rights](#)
- [Protecting Human Rights in the Era of AI](#)
- [The Impact of Digital Platforms on Individual Rights](#)

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